



6.01 Drivers Hours of Service

Hours of Service

Silverpoint will educate employees, drivers, leased operators, dispatchers, safety and management personnel in hours of service, and the recording of hours of service to a logbook. A record will be maintained on each employee's file showing that the carrier ensures the employee has this knowledge or any training received.

As a professional driver, dispatcher and/or safety person, fatigue is a challenging natural human occurrence. It is a function of the human body over which some control can be kept but when the body needs sleep, it must be respected and time for rest and sleep must be taken.

Management at Silverpoint understands this challenge and will do what it can to help the driver ensure they do get enough rest. An element of fatigue management is that the driver must abide by the hours-of-service regulations and report their hours daily to dispatch.

Silverpoint will evaluate each driver's daily log for proper completion, accurate time recording, and provide feedback to the driver on form and matter.

Falsification of the driver's hours of service in any form, a driver acting on his own accord and/or a dispatcher allowing or offering a job to a driver when they have no additional hours is a serious offence. Silverpoint will respond immediately to have the driver and/or dispatcher placed out of service should it be determined that a driver has falsified the daily log or that a dispatcher has allowed or offered a driver a job when the driver has no hours remaining. An investigation of the incident may determine that disciplinary action may need to be implemented.

Electronic Logging Device (ELD) Requirement :

All vehicles operating as a commercial carrier operating a commercial vehicle exceeding 4,500 Kg by federal law must be monitored by an Electronic Logging Device.

1. Silverpoint will educate employees, drivers, leased operators, dispatchers, safety, and management personnel in hours of service and the recording of hours of service to a logbook.
2. A record will be maintained in each employee's file showing that the carrier ensures the employee has this knowledge or any training received.

Fatigue Management :

1. As a professional driver, dispatcher, and/or safety person, fatigue is a challenging natural human occurrence. It must be respected, and time for rest and sleep must be taken when the body needs sleep.
2. Management at Silverpoint understands this challenge and will do what it can to help drivers ensure they get enough rest.
3. Drivers must abide by the hours-of-service regulations and report their hours daily to dispatch.

Daily Log Evaluation :

1. Silverpoint will evaluate each driver's daily log for proper completion, accurate time recording, and provide feedback to the driver on form and matter.



2. Falsification of the driver's hours of service in any form, a driver acting on their own accord, and/or a dispatcher allowing or offering a job to a driver with no additional hours is a serious offense .
3. Silverpoint will respond immediately to have the driver and/or dispatcher placed out of service should it be determined that a driver has falsified the daily log or that a dispatcher has allowed or offered a job to a driver when the driver has no hours remaining .
4. An investigation of the incident may determine that disciplinary action needs to be implemented .

Monitoring Hours of Service :

1. A commercial driver's hours of service will be monitored daily.
2. Silverpoint management will select the driver's hours of service cycle and shift start time.
3. A dispatch will be offered if the employee driver has hours/days available .
4. Previous days' hours and accumulated days will be reviewed , and exceptions will be acted upon .
5. Drivers that do not have hours and/or days available are placed "Off Duty" by dispatch .
6. Hours of service violations are recorded , and appropriate remedial action (discipline where required) is implemented .
7. Fatigue countermeasures are implemented when and where required .

Driver's Daily Records :

1. Driver's daily records include a logbook , bill of lading , TDG documents , and daily vehicle inspection .
2. Daily records are to be completed at the time the event is performed and/or updates are required by action and/or by regulation .
3. Submission of the record to the home terminal within 20 days.
4. Driver's records to be maintained on file at the main Silverpoint terminal for four years.
5. Exception to the four years' retention of records is the driver's daily log, which is held for only six months .
6. A driver's hours of service can be logged in two different ways - a time sheet or a daily log (paper or electronic) . The hours and days permitted are based on the "70 in 7 days" or "120 in 14 days" method .

Management will determine what cycle will be used to have the drivers operate within the selected cycle and log the hours and days and which cycle will be used .

A driver will always have the authority to remove themselves from an active dispatch for reasons such as fatigue , health , medication reactions or other .

Silverpoint Management is responsible for ensuring that the drivers obey the hours of service regulations . Drivers of almost all NSC vehicles must follow these rules .

The employee is obligated to:

- Understand the hours-of-service rules -these are found in Division 37 (Part 3) of the Motor Vehicle Act Regulations (MVAR);
- Professional drivers do not drive for longer periods than legally allowed .
- Professional drivers get the rest periods they are required to have .



6.01 Drivers Hours of Service

- Management will maintain accurate records that show the drivers are working within the legal limits; and
- Ensure that drivers who travel into other provinces or territories know and follow the Canada Transportation Federal hours of service regulations. These are found in the Federal Commercial Vehicle Drivers Hours of Service Regulations at:

<http://laws.justice.gc.ca/en/SOR-2005-313/>

Drivers are responsible for working within the hours-of-service rules. Silverpoint Management is responsible for setting up practices that ensure that our drivers follow these rules.

On-duty

On-duty time begins when a driver begins to work or when a carrier requires a driver to be ready to start work, includes any driving time, and ends when the driver stops work. The following is considered to be on-duty:

- inspecting, servicing, repairing, conditioning or starting a commercial vehicle.
- traveling as one of two drivers and not resting in the sleeper berth.
- participating in the loading or unloading of a commercial vehicle.
- inspecting or checking the load.
- waiting for the vehicle or load to be inspected.
- waiting along the route because of an accident or other unanticipated events.
- performing any work for any carrier; and
- waiting for a commercial vehicle to be serviced, loaded, unloaded or dispatched.

Off-duty

The Motor Vehicle Act Regulations set minimum amounts of off-duty time for drivers:

- a driver must take 10 hours off in a day; eight of which must be consecutive.
- a driver must take eight consecutive hours off between work shifts.
- off-duty time other than the eight consecutive hours may be taken in increments no shorter than 30 minutes each; and all drivers must take 24 consecutive off-duty hours every 14 days.

Day

A "day" is a 24-hour period that begins at the hour designated by the carrier. The grids on most pre-printed log pages run from midnight to midnight. Each day is independent and there are certain on-duty, off-duty and driving limits for each day:

- minimum of 10 hours of off-duty must be taken every day.
- maximum of 13 hours driving in a day; and
- no driving after 14 hours of on-duty in a day.

The start time remains the same throughout each cycle. The driver must "reset" the cycle to change the start time.

Cycles



6.01 Drivers Hours of Service

Drivers must keep track of their time using one of two cycles. Each cycle has a maximum number of hours of on-duty time.

Silverpoint Management decides on one of two cycles: **Cycle 1**

Drivers must not drive after completing 70 on-duty hours in 7 days.

Cycle 2

Drivers must not drive after completing 120 on-duty hours in 14 days and must take at least 24 consecutive hours off-duty time prior to accumulating 70 hours of on-duty time.

Reset

A cycle can be reset at any time by taking:

- 36 consecutive hours off to reset Cycle 1
- 72 consecutive hours off to reset Cycle 2

Work-Shift

The work-shift is the elapsed time between two off-duty periods of at least eight consecutive hours. A driver cannot drive after 16 hours of elapsed time until a driver takes at least eight consecutive hours of off-duty time. Every off-duty period consisting of eight consecutive hours or more resets the work-shift.

Deferring off-duty time

Drivers may reduce their off-duty requirement of 10 hours by up to two hours providing:

- the two hours is not part of the eight consecutive off-duty hours; and
- the two hours are added to the eight consecutive off-duty hours taken on the second day; and
- the logbook clearly indicates "Deferral - Day 1" and "Deferral - Day 2".

Sleeper Berth

The same hours of service regulations for driving and on-duty apply to drivers using sleeper berths. Single drivers using a sleeper berth may split up their required off-duty time into two periods if:

- neither period is less than two hours; and
- the total off-duty time is at least 10 hours.

Team drivers using a sleeper berth can split their required off-duty time into two periods if:

- neither period is less than four hours.
- the periods total at least eight hours; and
- the total off-duty time in a day is at least 10 hours.

Personal Use Exemption

Driving commercial vehicles for personal use is not considered to be "on-duty" provided that:



- the commercial vehicle is unloaded .
- the vehicle is not towing a trailer .
- the maximum distance driven is 75 km per day.
- odometer readings are recorded ; and
- the driver is not subject to an "Out of Service " declaration .

Repositioning in order to pick up a load is not personal time .

Time Records for Radius Operation

A driver does not require a daily log when **ALL** the following conditions are met:

- driver /vehicle does not operate beyond 160-kilometer radius of the home terminal .
- driver returns to home terminal each day to begin a minimum of eight consecutive hours of off-duty time .
- Silverpoint maintains and retains for a period of six months ' accurate and legible records showing the drivers duty status and elected cycle for each day, the hour at which each duty status begins and ends , and the total number of hours spent in each status ; and
- the driver is not driving under a permit issued under the Commercial Vehicle Drivers Hours of Service Regulation .

Note : When a driver is not required to keep a daily log before the beginning of the day (radius operation), the driver shall record the number of hours of off-duty time and on-duty time that was accumulated by the driver for each day during the 14 days immediately before the beginning of the day in the "remarks " section of the daily log .

Daily Log Completion for Federal Carriers

Unless exempted by the regulation , a daily log must be completed for each day and the following information must be entered into the daily log:

At the beginning of each day:

1. the date, the start time of day if different than midnight , the name of the driver and, if the driver is a member of a team of drivers, the names of the co-drivers .
2. in the case of a driver who is not driving under the provisions of an oil well service permit, the cycle that the driver is following .
3. the commercial vehicle license plates or unit numbers .
4. the odometer reading of each of the commercial vehicles operated by the driver.
5. the names and the addresses of the home terminal and the principal place of business of every motor carrier by whom the driver was employed or otherwise engaged during that day.
6. in the "Remarks " section of the daily log, if the motor carrier or driver was not required to keep a daily log immediately before the beginning of the day, the number of hours of off-duty time and on-duty time that were accumulated by the driver each day during the 14 days immediately before the beginning of the day; and
7. if applicable , a declaration in the "Remarks " section of the daily log that states that the driver is deferring off-duty time under section 16 and that clearly indicates whether the driver is driving under day one or day two of that time.



During the day:

the hours in each duty status during the day covered by the daily log, in accordance with Schedule 2, and the location of the driver each time their duty status changes, as that information becomes known.

At the end of each day:

the total hours for each duty status and the total distance driven by the driver that day, excluding the distance driven in respect of the driver's personal use of the vehicle, as well as the odometer reading at the end of the day and sign the daily log attesting to the accuracy of the information recorded in it.

Logbook Retention and Distribution

The driver must report daily on the hours of work and driving that were completed the previous day. If dispatch does not know the drivers' hours and/or days out, dispatch is not permitted to provide the next offer of a dispatch to the driver.

Once it has been determined that the driver has enough hours and days to complete the next dispatch then the next dispatch will be offered.

The driver must forward the original copy of the daily log and supporting documents to the home terminal of the driver within 20 days of the completion of the daily log. In the case of electronic logs, it is expected that the driver do a daily upload of the completed electronic daily log to the server.

Silverpoint shall, within 30 days of receiving the daily logs and supporting documents, deposit the daily logs and supporting documents, paper or electronic, at its principal place of business and retain all daily logs and supporting documents in chronological order for each driver for at least six months.

Silverpoint will audit the driver's hours of service daily log for accuracy, non-falsification, and form and manner. The audit will occur within 20 days of receiving the log records. To confirm accuracy and/or no falsification, Silverpoint will utilize fuel receipts, bills of lading and/or time tickets. Violations will be evaluated for severity and documented. Days out and/or hours violations are subject to disciplinary action by Silverpoint. The driver may be subject to provincial law enforcement fines for any logbook violation.

A driver's logbook violation will be retained on file for no less than four years. This includes a copy of the driver's logs when and where the violation occurred. All other drivers' daily logs may be destroyed after six months.

Monitoring Driver's Compliance

Silverpoint Management understands the responsibility of providing the leadership to ensure that Silverpoint drivers are not intentionally placed into a fatigued situation. Fatigue in itself affects people in different ways at different times. The ability for the driver to take preventative steps to prevent fatigue is supported by Silverpoint Management. Silverpoint does have control on the number of hours that a driver is permitted by regulation and the jobs that are offered by dispatch to the driver. It is the responsibility of Silverpoint management to ensure that drivers and dispatch personnel know and understand the Hours-of-Service regulations.

Silverpoint monitors driver and dispatcher compliance by conducting internal driver's daily log audits. The audit results are used to verify that the frequency of hours-of-service violations are being reduced. The audits follow these guidelines:

1. Verify that all drivers have a record for all calendar days.
2. Check all drivers to ensure that drivers apply the regulations to all roads, both public and private (forestry roads), as well as waterways (ferries) in Canada.
3. Check all drivers for all form and manner compliance (i.e. name, date, etc.);
4. Check all drivers in detail at least once every three months for fatigue-related violations (i.e. driving over



hours, two logs for one day, false logs, etc.).

To conduct the driver's daily log audit, the following is required :

1. Use independent (i.e. that the driver does not create or can modify) supporting documents to verify logs (i.e. fuel receipts, tach cards, bills of lading with shipping times, etc.)
2. Check new drivers/dispatchers /safety staff on compliance to the hours-of-service regulations .
3. Check to ensure drivers/dispatchers /safety staff establishes a list of good and worst performers .
4. Check a random percentage of all drivers/dispatchers using a random spot check system .
5. All noncompliance events and form and manner will be reviewed with the driver and/or dispatcher . The review will be documented and dated .
6. Identify who is responsible for performing these checks preparing the summary reports taking
7. actions, etc., and ensure that these employees have the necessary knowledge and skills. Silverpoint Management will ensure that drivers and dispatchers will be knowledgeable and skilled in working with in the driver's hours of service regulations .
8. Address all identified deficiencies with individual staff taking appropriate actions (i.e. retraining or discipline) and documenting the actions taken in the driver's file.
9. Monthly reports to senior management of the findings of the internal audit, and the corrective
10. action(s) taken. Retain all corrective action reports for at least for no less than four years.
11. All drivers' daily logs with no infractions may be destroyed after six months.

It is Silverpoint's responsibility to ensure that all drivers and dispatchers comply with the regulations .

Accident Records

All motor vehicle accidents or motor vehicle damage , regardless of how minor, are to be reported and investigated . It is only by this type of investigation that the causes of vehicle accidents can be properly analyzed . Without this investigation and review, plans and programs that will reduce the number of motor vehicle accidents cannot be developed . The form, supervisor's report of Motor Vehicle Accident Investigation , may be used for this purpose .

Note that this report is not to be used for the reporting of an automobile claim (for insurance purposes) or takes the place of reporting the motor vehicle accident to a law enforcement entity. In some cases, it would be prudent to complete a written accident investigation report Consult with legal counsel (such as the house counsel of the insurance company). This is particularly important if third party liability claims can be anticipated as a result of the accident .

Motor vehicle accident : Any event that results in any unintended injury or property damage that can be attributed to the motion of a vehicle or its load .

A vehicle is parked unattended and is hit by another vehicle . The employee is planning to return to the vehicle during the workday . This is an accident . An accident report is to be completed and forwarded to management by the vehicle driver .

During a pre-trip inspection , a vehicle is noted with a dent in the right rear quarter panel . Casual inspection shows that the vehicle has had a collision with something . This is an accident . The driver may be "UNKNOWN ." The repair of this vehicle should be coded as an accident .

All questions need to be directed to your Supervisor ,